

Ethical guidelines for treating non-Muslims within Islamic jurisprudence

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Google/gemini-3.1-pro-preview	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Ethical guidelines for treating non-Muslims within Islamic jurisprudence".

Overall topic for alignment: Muslim-non-Muslim relations grounded in human dignity in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Quranic & Theological Foundations: Anchored in *Karamat al-Insan* (universal human dignity), Sharia mandates religious freedom, absolute justice (*Adl*), and the sanctity of life. Classical theological schools (Mu'tazila, Maturidi, Ash'ari) justify ethical interfaith treatment through either objective rationalism or divine mandate.

Historical & Juristic Protections: Evolving from the pluralistic Constitution of Medina, classical jurisprudence structured non-Muslim relations via treaty statuses: *Ahl al-Dhimma* (protected residents paying *Jizya* for religious autonomy), *Mu'ahid* (treaty partners), and *Musta'min* (temporary safe passage). The four Sunni schools (*Fiqh*) formalized specific legal protections: Hanafis mandated equal capital retribution for killing a *Dhimmi*; Malikis required state provision and gentle treatment; and Shafi'is and Hanbalis strictly safeguarded physical security, property, and contract inviolability.

Contemporary Legal Evolution: Classical territorial binaries are largely obsolete. Modern scholars advocate for *Muwatana* (equal citizenship) in Muslim-majority states, as evidenced by the 2016 Marrakesh Declaration. For Muslims in non-Muslim majority states, *Fiqh al-Aqalliyyat* (Jurisprudence of Minorities) conceptualizes secular citizenship and visas as binding covenants of peace.

Human Rights & AI Application: Moving past both Orientalist critiques and radical cherry-picking, reformists increasingly align Sharia's foundational objectives (*Maqasid*) with the Universal Declaration of Human Rights. Additionally, researchers now utilize Artificial Intelligence and Natural Language Processing to analyze vast classical text libraries, quantitatively mapping Sharia's broad trajectories to empirically surface historically dominant precedents of tolerance and peaceful coexistence.

FULL CONTENT

Ethical guidelines for treating non-Muslims within Islamic jurisprudence

The relationship between Muslims and non-Muslims has been a subject of profound legal, ethical, and theological discourse throughout Islamic history. Grounded in the concept of human dignity, Islamic jurisprudence (*Fiqh*) offers a complex framework for navigating these relations. Far from being a monolithic set of punitive rules, the overarching moral compass of Sharia emphasizes justice, compassion, and the sanctity of human life.

This article explores the ethical guidelines for treating non-Muslims within Islamic jurisprudence, examining its Quranic foundations, historical contexts, juristic and theological schools, and its intersection with modern human rights and emerging technologies like artificial intelligence.

Quranic Foundations of Sharia and Human Dignity

The foundational texts of Islam establish a baseline of inherent human worth, encapsulated in the Arabic term *Karamat al-Insan* (human dignity). The Quran explicitly states, "We have certainly honored the children of Adam" (Quran 17:70), extending this dignity to all humanity regardless of religious affiliation.

Sharia, which translates to "the clear path to water" and represents the moral and legal code of Islam, is anchored in several key Quranic principles regarding non-Muslims:

- **Freedom of Belief:** The Quran categorically states, "There is no compulsion in religion" (Quran 2:256), establishing the theological basis for religious pluralism.
- **Justice and Benevolence:** Muslims are commanded to deal with those who do not fight them on account of religion with *Adl* (absolute justice) and *Ihsan* (benevolence and excellence) (Quran 60:8).
- **Sanctity of Life:** The unjustified killing of any human soul is equated to killing all of humanity (Quran 5:32).

These verses form the ethical bedrock upon which Islamic scholars built centuries of jurisprudence regarding interfaith relations.

Historical Contexts: Pacts and Protections

To understand Islamic jurisprudence, one must look at its historical application. The earliest and most significant political document in this regard is the Constitution of Medina (*Sahifat al-Madinah*), drafted by the Prophet Muhammad. This charter established a pluralistic community (*Ummah*) where Jewish tribes and early Muslims shared mutual defense responsibilities and enjoyed religious autonomy.

As the Islamic empire expanded, jurists categorized non-Muslims into specific legal statuses based on treaties. The most prominent Arabic terms include:

- **Ahl al-Dhimma (Dhimmis):** Non-Muslims living permanently within Muslim-majority lands. They were granted state protection, exemption from military service, and the right to practice their religion and be judged by their own religious laws in exchange for a tax known as *Jizya*.
- **Mu'ahid:** A non-Muslim from an outside territory who enters a peace treaty or covenant (*Ahd*) with the Islamic state.
- **Musta'min:** A non-Muslim granted temporary safe passage (*Aman*) for trade, diplomacy, or travel.

While the *Dhimmi* system is often viewed through a modern lens as unequal, in its historical context, it was a revolutionary framework for minority rights that prevented forced conversions and guaranteed physical and economic protection.

Islamic Theological Schools and the Nature of Ethics

The ethical treatment of non-Muslims was also shaped by classical Islamic theology (*Kalam*), which debated the nature of good, evil, and human reason.

- **The Mu'tazila:** This rationalist school argued that ethical values like justice and human dignity are objective and can be understood through human reason independent of revelation. Therefore, treating non-Muslims justly is an objective moral imperative.
- **The Maturidi School:** Striking a balance, Maturidi theology also emphasized human reason, asserting that humans inherently recognize the dignity of others, making ethical coexistence a natural human inclination supported by divine law.
- **The Ash'ari School:** This traditionalist school argued that good and evil are determined solely by God's command. However, because God explicitly commands *Adl* (justice) and forbids oppression (*Zulm*), the ethical treatment and protection of non-Muslims remains a strict, divinely mandated obligation.

The Four Islamic Juristic Schools (Fiqh)

The practical application of Sharia was codified by the four major Sunni schools of jurisprudence, each offering distinct perspectives on non-Muslim relations based on their methodological approaches:

The Hanafi School

Founded by Abu Hanifa, this school is historically the most widespread and is noted for its rationalistic approach. The Hanafis were remarkably egalitarian in specific legal areas regarding non-Muslims. For instance, they ruled that the blood of a non-Muslim *Dhimmi* is legally equal to the blood of a Muslim; if a Muslim murdered a non-Muslim, the Muslim would face *Qisas* (capital retribution). They also allowed non-Muslims to construct and repair places of worship in specific contexts and strictly protected their property rights.

The Maliki School

Originating in Medina with Imam Malik, this school heavily weighed the practical traditions of the early Medinan community. Maliki jurists placed a profound emphasis on the protection of non-Muslims. A famous Maliki jurist, Shihab al-Din al-Qarafi, wrote that Muslims are obligated to shield *Dhimmis* from any aggression, provide for their poor, and treat them with gentleness, stating that failing to do so is a breach of the Prophet's covenant.

The Shafi'i School

Founded by Imam al-Shafi'i, this school relied strictly on textual evidence (Quran and Hadith). While Shafi'i rulings could be more restrictive regarding the public display of non-Muslim religious symbols and the cessation of treaties, they maintained an absolute prohibition on treacherous violence. A *Mu'ahid* or *Musta'min* was guaranteed total physical security, and violating this trust was considered a major sin.

The Hanbali School

The most textually conservative school, founded by Ahmad ibn Hanbal, is often associated with strictness. However, Hanbali jurisprudence places the highest premium on the sanctity of contracts. If an Islamic state enters into a treaty with non-Muslims, the terms of that contract are inviolable. Furthermore, Hanbali law strictly forbids Muslims from usurping the wealth or property of non-Muslims under any pretext.

Minority and Majority Settings: From Classical to Modern

Classical jurisprudence divided the world into *Dar al-Islam* (the Abode of Islam) and *Dar al-Harb* (the Abode of War), with a third category, *Dar al-Ahd* (the Abode of Treaty), recognizing peaceful non-Muslim territories.

Today, these classical binary divisions have largely been rendered obsolete by the modern nation-state system and international law. In contemporary Muslim-majority settings, scholars advocate for moving away from the *Dhimmi* paradigm toward *Muwatana* (equal citizenship). The Marrakesh Declaration (2016), signed by hundreds of Islamic scholars, utilized the Constitution of Medina to argue that modern Sharia mandates equal citizenship and the protection of minorities in Muslim-majority countries.

Conversely, in minority settings where Muslims live in non-Muslim majority countries, a new branch of jurisprudence has emerged: *Fiqh al-Aqalliyyat* (Jurisprudence of Minorities). This framework guides Muslims to integrate harmoniously, respect secular laws, and contribute positively to their societies, viewing their citizenship or visas as binding covenants (*Ahd*) of peace and mutual respect.

The Orientalist Perspective

The study of Muslim–non-Muslim relations has heavily been influenced by the Orientalist perspective—the historical Western academic study of the East. Early Orientalist scholars often framed Sharia as inherently hostile to non-Muslims, heavily emphasizing the *Jizya* tax and specific restrictive rulings to paint a picture of systemic oppression and perpetual religious warfare.

While these critiques highlighted genuine historical instances of discrimination, modern scholars—both Western and Islamic—argue that the Orientalist view often stripped Islamic law of its historical context.

It frequently ignored the fact that the *Dhimmi* status provided a level of religious tolerance and physical security that was virtually nonexistent in medieval Europe. Today, academic consensus seeks a more nuanced view, acknowledging both the historical limitations of classical Fiqh and its foundational commitments to coexistence.

Human Rights Declarations and Sharia

The intersection of Sharia and modern human rights is a critical area of contemporary ethical discourse. The Universal Declaration of Human Rights (UDHR) of 1948 established a global standard for human dignity, freedom of religion, and equality.

Historically, some traditionalist scholars viewed the UDHR with suspicion, leading to the creation of alternative frameworks like the Cairo Declaration on Human Rights in Islam (1990), which sought to articulate human rights strictly within the boundaries of Sharia. However, the Cairo Declaration faced criticism for limiting religious freedoms and women's rights.

In recent years, a strong reformist movement has emerged, arguing that the ultimate objectives (*Maqasid*) of Sharia—the preservation of life, religion, intellect, lineage, and property—are entirely aligned with the UDHR. By prioritizing the overarching Quranic principles of *Karama* (dignity) and *Adl* (justice) over context-specific medieval rulings, modern Islamic jurisprudence increasingly harmonizes with universal human rights standards.

AI's Humanistic Approach to Sharia

As the digital age advances, Artificial Intelligence (AI) is beginning to play a fascinating role in the interpretation and dissemination of Islamic jurisprudence. Historically, extremist groups have cherry-picked isolated, context-heavy classical rulings to justify violence or intolerance against non-Muslims.

Today, AI and natural language processing (NLP) are being utilized to take a "humanistic approach" to Sharia. By ingesting and analyzing vast libraries of classical Arabic texts, *Fatawa* (legal rulings), and historical treatises, AI models can map the broader trajectory of Islamic law. These systems can instantly cross-reference restrictive rulings with the overarching Quranic mandates of mercy and justice.

A humanistic AI approach to Sharia helps scholars and the general public bypass radical echo chambers. It surfaces the dominant, historically tolerant traditions of the Hanafi and Maliki schools, highlights the theological imperatives of the Maturidi and Mu'tazila, and demonstrates quantitatively that the vast majority of Islamic jurisprudence emphasizes peaceful coexistence, the sanctity of contracts, and the preservation of human dignity.

Conclusion

The ethical guidelines for treating non-Muslims within Islamic jurisprudence are rich, complex, and deeply rooted in the Quranic affirmation of human dignity. While classical juristic schools formulated rules based on the geopolitical realities of their time, the underlying principles of justice, benevolence, and the sanctity of covenants remain timeless. By moving from historical paradigms of protection to modern concepts of equal citizenship, and by leveraging modern tools like AI to highlight the humanistic core of Sharia, the Islamic legal tradition continues to offer a robust ethical framework for peaceful and dignified interfaith coexistence.

SEGMENTED DATA (2)

Ethical guidelines for treating non-Muslims within Islamic jurisprudence

The relationship between Muslims and non-Muslims has been a subject of profound legal, ethical, and theological discourse throughout Islamic history. Grounded in the concept of human dignity, Islamic jurisprudence (*Fiqh*) offers a complex framework for navigating these relations. Far from being a monolithic set of punitive rules, the overarching moral compass of Sharia emphasizes justice, compassion, and the sanctity of human life.

This article explores the ethical guidelines for treating non-Muslims within Islamic jurisprudence, examining its Quranic foundations, historical contexts, juristic and theological schools, and its intersection with modern human rights and emerging technologies like artificial intelligence.

Quranic Foundations of Sharia and Human Dignity

The foundational texts of Islam establish a baseline of inherent human worth, encapsulated in the Arabic term *Karamat al-Insan* (human dignity). The Quran explicitly states, "We have certainly honored the children of Adam" (Quran 17:70), extending this dignity to all humanity regardless of religious affiliation.

Sharia, which translates to "the clear path to water" and represents the moral and legal code of Islam, is anchored in several key Quranic principles regarding non-Muslims:

- **Freedom of Belief:** The Quran categorically states, "There is no compulsion in religion" (Quran 2:256), establishing the theological basis for religious pluralism.
- **Justice and Benevolence:** Muslims are commanded to deal with those who do not fight them on account of religion with *Adl* (absolute justice) and *Ihsan* (benevolence and excellence) (Quran 60:8).
- **Sanctity of Life:** The unjustified killing of any human soul is equated to killing all of humanity (Quran 5:32).

These verses form the ethical bedrock upon which Islamic scholars built centuries of jurisprudence regarding interfaith relations.

Historical Contexts: Pacts and Protections

To understand Islamic jurisprudence, one must look at its historical application. The earliest and most significant political document in this regard is the Constitution of Medina (*Sahifat al-Madinah*), drafted by the Prophet Muhammad. This charter established a pluralistic community (*Ummah*) where Jewish tribes and early Muslims shared mutual defense responsibilities and enjoyed religious autonomy.

As the Islamic empire expanded, jurists categorized non-Muslims into specific legal statuses based on treaties. The most prominent Arabic terms include:

- **Ahl al-Dhimma (Dhimmis):** Non-Muslims living permanently within Muslim-majority lands. They were granted state protection, exemption from military service, and the right to practice their religion and be judged by their own religious laws in exchange for a tax known as *Jizya*.
- **Mu'ahid:** A non-Muslim from an outside territory who enters a peace treaty or covenant (*Ahd*) with the Islamic state.
- **Musta'min:** A non-Muslim granted temporary safe passage (*Aman*) for trade, diplomacy, or travel.

While the *Dhimmi* system is often viewed through a modern lens as unequal, in its historical context, it was a revolutionary framework for minority rights that prevented forced conversions and guaranteed physical and economic protection.

Islamic Theological Schools and the Nature of Ethics

The ethical treatment of non-Muslims was also shaped by classical Islamic theology (*Kalam*), which debated the nature of good, evil, and human reason.

- **The Mu'tazila:** This rationalist school argued that ethical values like justice and human dignity are objective and can be understood through human reason independent of revelation. Therefore, treating non-Muslims justly is an objective moral imperative.
- **The Maturidi School:** Striking a balance, Maturidi theology also emphasized human reason, asserting that humans inherently recognize the dignity of others, making ethical coexistence a natural human inclination supported by divine law.
- **The Ash'ari School:** This traditionalist school argued that good and evil are determined solely by God's command. However, because God explicitly commands *Adl* (justice) and forbids oppression (*Zulm*), the ethical treatment and protection of non-Muslims remains a strict, divinely mandated obligation.

The Four Islamic Juristic Schools (Fiqh)

The practical application of Sharia was codified by the four major Sunni schools of jurisprudence, each offering distinct perspectives on non-Muslim relations based on their methodological approaches:

The Hanafi School

Founded by Abu Hanifa, this school is historically the most widespread and is noted for its rationalistic approach. The Hanafis were remarkably egalitarian in specific legal areas regarding non-Muslims. For instance, they ruled that the blood of a non-Muslim *Dhimmi* is legally equal to the blood of a Muslim; if a Muslim murdered a non-Muslim, the Muslim would face *Qisas* (capital retribution). They also allowed non-Muslims to construct and repair places of worship in specific contexts and strictly protected their property rights.

The Maliki School

Originating in Medina with Imam Malik, this school heavily weighed the practical traditions of the early Medinan community. Maliki jurists placed a profound emphasis on the protection of non-Muslims. A famous

Maliki jurist, Shihab al-Din al-Qarafi, wrote that Muslims are obligated to shield *Dhimmi*s from any aggression, provide for their poor, and treat them with gentleness, stating that failing to do so is a breach of the Prophet's covenant.

The Shafi'i School

Founded by Imam al-Shafi'i, this school relied strictly on textual evidence (Quran and Hadith). While Shafi'i rulings could be more restrictive regarding the public display of non-Muslim religious symbols and the cessation of treaties, they maintained an absolute prohibition on treacherous violence. A *Mu'ahid* or *Musta'min* was guaranteed total physical security, and violating this trust was considered a major sin.

The Hanbali School

The most textually conservative school, founded by Ahmad ibn Hanbal, is often associated with strictness. However, Hanbali jurisprudence places the highest premium on the sanctity of contracts. If an Islamic state enters into a treaty with non-Muslims, the terms of that contract are inviolable. Furthermore, Hanbali law strictly forbids Muslims from usurping the wealth or property of non-Muslims under any pretext.

Minority and Majority Settings: From Classical to Modern

Classical jurisprudence divided the world into *Dar al-Islam* (the Abode of Islam) and *Dar al-Harb* (the Abode of War), with a third category, *Dar al-Ahd* (the Abode of Treaty), recognizing peaceful non-Muslim territories.

Today, these classical binary divisions have largely been rendered obsolete by the modern nation-state system and international law. In contemporary Muslim-majority settings, scholars advocate for moving away from the *Dhimmi* paradigm toward *Muwatana* (equal citizenship). The Marrakesh Declaration (2016), signed by hundreds of Islamic scholars, utilized the Constitution of Medina to argue that modern Sharia mandates equal citizenship and the protection of minorities in Muslim-majority countries.

Conversely, in minority settings where Muslims live in non-Muslim majority countries, a new branch of jurisprudence has emerged: *Fiqh al-Aqalliyyat* (Jurisprudence of Minorities). This framework guides Muslims to integrate harmoniously, respect secular laws, and contribute positively to their societies, viewing their citizenship or visas as binding covenants (*Ahd*) of peace and mutual respect.

The Orientalist Perspective

The study of Muslim–non-Muslim relations has heavily been influenced by the Orientalist perspective—the historical Western academic study of the East. Early Orientalist scholars often framed Sharia as inherently hostile to non-Muslims, heavily emphasizing the *Jizya* tax and specific restrictive rulings to paint a picture of systemic oppression and perpetual religious warfare.

While these critiques highlighted genuine historical instances of discrimination, modern scholars—both Western and Islamic—argue that the Orientalist view often stripped Islamic law of its historical context. It frequently ignored the fact that the *Dhimmi* status provided a level of religious tolerance and physical security that was virtually nonexistent in medieval Europe. Today, academic consensus seeks a more nuanced view,

acknowledging both the historical limitations of classical Fiqh and its foundational commitments to coexistence.

Human Rights Declarations and Sharia

The intersection of Sharia and modern human rights is a critical area of contemporary ethical discourse. The Universal Declaration of Human Rights (UDHR) of 1948 established a global standard for human dignity, freedom of religion, and equality.

Historically, some traditionalist scholars viewed the UDHR with suspicion, leading to the creation of alternative frameworks like the Cairo Declaration on Human Rights in Islam (1990), which sought to articulate human rights strictly within the boundaries of Sharia. However, the Cairo Declaration faced criticism for limiting religious freedoms and women's rights.

In recent years, a strong reformist movement has emerged, arguing that the ultimate objectives (*Maqasid*) of Sharia—the preservation of life, religion, intellect, lineage, and property—are entirely aligned with the UDHR. By prioritizing the overarching Quranic principles of *Karama* (dignity) and *Adl* (justice) over context-specific medieval rulings, modern Islamic jurisprudence increasingly harmonizes with universal human rights standards.

AI's Humanistic Approach to Sharia

As the digital age advances, Artificial Intelligence (AI) is beginning to play a fascinating role in the interpretation and dissemination of Islamic jurisprudence. Historically, extremist groups have cherry-picked isolated, context-heavy classical rulings to justify violence or intolerance against non-Muslims.

Today, AI and natural language processing (NLP) are being utilized to take a "humanistic approach" to Sharia. By ingesting and analyzing vast libraries of classical Arabic texts, *Fatawa* (legal rulings), and historical treatises, AI models can map the broader trajectory of Islamic law. These systems can instantly cross-reference restrictive rulings with the overarching Quranic mandates of mercy and justice.

A humanistic AI approach to Sharia helps scholars and the general public bypass radical echo chambers. It surfaces the dominant, historically tolerant traditions of the Hanafi and Maliki schools, highlights the theological imperatives of the Maturidi and Mu'tazila, and demonstrates quantitatively that the vast majority of Islamic jurisprudence emphasizes peaceful coexistence, the sanctity of contracts, and the preservation of human dignity.

Conclusion

The ethical guidelines for treating non-Muslims within Islamic jurisprudence are rich, complex, and deeply rooted in the Quranic affirmation of human dignity. While classical juristic schools formulated rules based on the geopolitical realities of their time, the underlying principles of justice, benevolence, and the sanctity of covenants remain timeless. By moving from historical paradigms of protection to modern concepts of equal citizenship, and by leveraging modern tools like AI to highlight the humanistic core of Sharia, the Islamic legal tradition continues to offer a robust ethical framework for peaceful and dignified interfaith coexistence.